

To: TenneT, Manon van Beek & Otto Jager

From: Aberkyn, Erik Mandersloot

Ref: Proposal Executive Board Journey 2021 & 2022

Date: May 22, 2021

"Leadership in a transformation of an era is about taking people to where nobody has gone before."

Dear Manon and Otto,

Thank you very much for your invitation to continue the coaching journey of the Executive Board in 2021 and 2022.

Following our initial experience of working together in March and the briefing conversation we had on 26 April, please find below our proposed approach.

Evidently, the eventual journey is tailored and co-created step by step, so what is proposed below can be seen as a starting point for further shaping together.

CONTEXT & REQUEST: NEXT LEVEL LEADERSHIP IN A PHASE OF RAPID GROWTH

Your aspiration is crystal clear. You aspire to take your individual leadership, your team effectiveness and the organisational impact on the energy transition to a next level in a way that is inspirational to all involved.

TenneT is in a transformation set out in early 2019 to i) secure supply, ii) energise people and organization, iii) secure the financial health and iv) accelerate the energy transition. You have redefined the strategy, adjusted the organization, and started multiple strategic and change initiatives, such as the launch of organization wide (leadership) development programs and priority behaviours: Ownership, Courage and Connection and recently the new program that seeks to enhance the change capabilities. Furthermore, you welcome 10%-15% new people every year and need to secure scarce talent in order to be successful. Hence also the strong focus on Diversity & Inclusion to ensure that all can contribute. The aspirations and expectations offer creative tensions like: how fast can we grow, how do we organise for growth and is there a limit?





So far, the new team setting started well, especially in the extraordinary pandemic reality. At the same time, you also feel much more will be needed and you desire more. Otto will be transitioning out around the end of the year and a new member will join.

In addition, you have identified thirteen 'hot potatoes' that need an unlock to create flow in the organisation. Other topics that require specific attention are i) SLT alignment, ii) operating in a complex highly political stakeholder arena and iii) the mix of German and Dutch cultures and their specific attributes and tensions.

OBJECTIVES & ASPIRED IMPACT: NEXT LEVEL PERFORMANCE IN ALL DIMENSIONS

The key objective of the team journey is to achieve the 'next level' on all dimensions. Specifically, the following three objectives have been mentioned.

1. *Increase personal and team effectiveness and operate like what you referenced as a 'true board' to complete the transformation and bring the organisation to a stable next level of continuous growth with sustainable work/life balance,*
2. *Resolve and align on the 'hot potatoes' and cultural challenges and embed the skills and practices to master creative conflict including transformational conversation capabilities as well as learning and aligning on how to engage and educate the senior leadership and the organisation to become a mature and learning organisation (double & triple loop learning),*
3. *Identify and strengthen what works well and use these 'pearls of leadership' to advance the organization,*
4. *Guide the transition of the team composition to ensure a smooth and energizing hand over and anchor the ways of working to be ready for the next changes.*

These objectives are the starting point and are updated throughout the journey based on the evolution of the team, the organization and what is needed next.

APPROACH & DESIGN PRINCIPLES: HOLISTIC TRANSFORMATIONAL TEAM COACHING

The proposed approach is 'holistic transformational team coaching' that has the aim to achieve transformational collective breakthroughs with demonstrable and sustainable shifts in the collective behaviors of the leaders addressed, as a reinforcing leadership system, not just increasing individual awareness or competencies.

This is an engaging and challenging approach where the focus is on directly engaging the team to understand and address their existing patterns of behavior, to shift beliefs and to practice new behaviors. We bring relevant frameworks and models where necessary, but the activities predominantly focus on the real topics with a direct link to the key topics at play in the transformation and business agenda and other initiatives taking place in the organization. Examples of frameworks and models and an initial overview of possible practices are included in appendix A.



Based on the briefing dialogue we formulated the following guiding principles that drive the design of the offsites, coaching and other activities:

- *Holistic approach* - alternation of individual personal and professional development (Lead Self), team development (Lead Team) and how to lead the organisation through the transformation (Lead Transformation); themes will be linked to the proven success characteristics of top teams: alignment on direction, quality of execution and renewal, always directly linked to the performance/strategic topics.
- *TenneT Leadership Vision* – the team creates a specific and shared view on ‘next level leadership’ for TenneT that builds on what has been created and that all use in their day-to-day leadership to create a unified experience for the organization.
- *Practices that become habits* – the Leadership Vision includes specific practices that are practiced until they become habits, e.g. root cause problem solving, feedback, creative conflict, transformational coaching, inquiry, dialogue.
- *External inspiration* – the design includes many external impulses through reading materials, podcasts, external speakers, visits, exploration as part of pre work, etc,
- *Balance strategic topics and personal/team development* – in each offsite and coaching we seek the right balance between content and reflection and learning to ensure the connection between the ‘hard’ and the ‘soft’ and keep the engagement,
- *Cyclical and energetic way of working* – through alternating conversations and experiences, we allow the subconscious mind to contribute and let topics simmer to evolve insights and solutions to a next level,
- *Variety & Fun* – in the spirit of ‘work hard, play hard’ ample time will be created for energizing activities like walking, hiking, cycling, being outdoors (no ‘survival’) and experiential settings to engage in learning, e.g. constellations, role or real play or art forms.

ACTIVITIES & DELIVERABLES: **CADENCE OF ACTIVITIES PLUS IN THE MOMENT SUPPORT**

The Executive Board Journey consists of 4 types of activities to be designed and executed before the end of 2022:

1. Seven quarterly Offsites

The backbone of the journey are quarterly offsites of 24-48 hours that create the space for the conversations that do not find place in the regular agenda.

Each offsite has a unique design with different paces and energies based on what is needed most in the moment fitting with the design of the overall journey. Deep personal and team reflection with inquiry and longer dialogues and action-oriented problem solving alternate.



All offsites include a learning cycle (prework, the actual offsite and a reflective individual coaching conversation), external inspiration, outdoor activities and moments of relaxation and pleasure.

To ensure a personal touch, for each offsite one of the team members acts as host and co-designs and helps create a special setting/place/program, e.g. the brewery with Maarten. The objectives and overall design of each of the offsites are aligned with Manon.

For each cycle 'a mirror' from the organisation or other stakeholders is organised. This can be an outcome of a survey already available, dedicated newly initiated surveys, a crowd sourcing tool, interviews or specially invited people to dialogue with. This mirror ensures an outside in perspective and helps to break group think and check assumptions.

The first cycle is in June and consists of two separate sessions on the 4th of June and 17&18th of June. In appendix B a preliminary agenda is included that forms the starting point for further co creation.

In the spring of 2022 a 'Wilderness Trail' or 'Learning Journey' can be included. For example going into nature for 3-4 days or a deep dive exploration on a relevant topic. The starting point is that we do this within the service area of TenneT.

2. Personal Development Journeys with monthly coaching

Based on the emerging TenneT Leadership Vision, each team member develops a personal and professional development program, guided by one of the coaches. The coaches provide one-on-one executive coaching on a monthly basis to ensure progress and sufficient reflection time in the full agendas.

Next to the coaching conversation the coaches are available for 'in the moment' coaching in between the coaching sessions. Coaches are available via txt messaging to support and can set up quick ~10 minutes conversations in the first possible moment to offer guidance on situations at hand. For example, for the preparation of a challenging meeting or tips for design of a session/intervention.

3. Two 360 feedback profiles with Leadership Circle Profile

To deepen both the individual and team journey a 360 feedback is conducted. This will be done twice. The first cycle is in the summer of 2021 and the second cycle in the summer of 2022. This allows to get more detailed input and provides an opportunity to measure progress.

We propose to conduct both an Individual Leadership Circle Profile (LCP) and a Collective Leadership Assessment (CLA). The latter provides a team overview of the individual profiles, so it does not require additional input or information gathering.



The Individual Leadership Circle Profile (LCP) provides in-depth feedback for individual leadership development. It measures both behaviour and the leader's inner operating system that runs that behaviour. The LCP reveals a leader's Operating System: internal assumptions that run behavior. And it allows the leader to see how his/her inner world of thought translates into a productive or unproductive style of leadership. The outcome of the LCP forms the basis of 'red thread' personal development path throughout the program journey supported by personal coach.

Collective Leadership Assessment (CLA) builds readiness for change at the group/team level. It measures the impact of the leaders and team's behaviour on the leadership culture. CLA therefore delivers a powerful "litmus" test of your leadership culture and reveals valuable data of how your team views their current leadership culture and compares that reality to the optimal culture they desire. This focuses the conversation immediately on those aspects of the leadership culture that most need to be addressed and instantly reveals key opportunities for leadership development. Also, the LCA measures how your leadership culture compares to that of other organizations.

The core of LCP and CLA is a digital survey that is sent to ~15 people (360 degrees, including friends and family) that takes ~20 minutes to fill that is enriched with ~5 deep dive interviews. In a two-hour personal debrief session with the coach the outcome of the survey is internalised and included in both the personal and professional development plan as well as the Offsites.

The key consideration for offering the LCP and CLA is that it is the most comprehensive research-based tools available with a clear correlation to performance. They have been used by 60,000+ leaders who have been assessed by 600,000+ evaluators.

Both the LCP and CLA can be input for the Offsites in Q3 of 2021 and 2022.

4. Reflection in action

The fourth line of activity is coaching on the job, being in the action. Sitting in and directly observing meetings and interactions and providing feedback in the moment, at the end or later, during a coaching session. Delivering targeted team interventions in-the-moment to help the team better understand its own dynamics, address gaps, and learn together are very efficient to successfully break patterns.

The coaches are present two to four times per quarter. This can be in a EB meeting, town hall meeting, supervisory board session, team session of the teams lead by EB members as well as external meetings. If the schedule allows the coach can also travel 'a full day' with one of the members of the team to allow continuous learning and practicing.

Evidently, being present in the action – even if it is as fly on the wall - also helps the coaches for the coaching sessions and during the offsites.

Appendix C includes an overview of these four types of activities over the duration of the engagement.



PROPOSED TEAM & FLEXIBILITY: TWO SENIOR COACHES SUPPORTED BY ALL OF MCKINSEY

Our proposed team consists of two coaches: Erik Mandersloot (Dutch, living in The Netherlands) and Roland Hess (Austrian, living in Austria).

Erik Mandersloot (Dutch), Managing Partner of Aberkyn since 2016. Next to his background as serial entrepreneur, he is trained as coach/therapist and has over 25 years of experience in organizational transformations, mostly on the pivotal connection between personal and organizational transformation. He has served in multiple industry sectors, including financial services, in many different countries. Erik is a partner of McKinsey in Amsterdam.

Roland Hess (Austrian) is a Senior Leader in Aberkyn. Before joining Aberkyn, he led large cultural transformations in Europe and US focusing predominantly for a German utility provider creating sustainable impact for more than sixty thousand people. For the past three years he has been living in Palo Alto, California serving as a board member of a start-up combining modern neuroscience and technology to scale behavioral change to increase organizational health and employee satisfaction creating sustainable bottom line financial as well as environmental impact of these organizations. He joined McKinsey in Vienna in 2020 and leads Aberkyn in Germany, Switzerland and Austria.

During the journey relevant specialists from the McKinsey ecosystem can be invited to offer specialist knowledge. The entire research and knowledge capability is at the disposal of the journey as well as the network of relevant relationships of McKinsey. A dedicated portal is set up for the members of the team to have continuous access to these materials.

IMPACT & EVALUATION: THREE LEVELS OF EVALUATION

We hold high standards to evaluation and learning as well as identifying and monitoring impact.

Our evaluation and impact assessment approach consists of three levels:

- Evaluation at the end of each session on different dimensions: insight, impact and faculty contribution,
- Progress after at the end of the journey based on the delta in LCP and CLA,
- Overall impact in the organization measured through (over) achievement of goals.

At the end of each quarter progress is being discussed with Manon and Otto and the direction for the next quarter is outlined.

LOCATIONS & LOGISTICS: PARTNERSHIP

The Aberkyn coaches take care of the design and facilitation of sessions. All booking of venues and travel arrangements will be done by the TenneT support team (Karin and Lianne).



To ensure sufficient connection with the organization, the coaches have bi-monthly conversations / check-ins with Sybille and ~3 Senior Leaders to be aware what is cooking in the organization.

TERMS & CONDITIONS: FEE PER QUARTER

Our professional fees for the Executive Board journey are € 175k per quarter. The first quarter is May – September 2021 to cater for a pandemic summer break. These fees include expenses like the LCP and CLA, guest speakers, travel within Europe and excludes all costs related to venues and special trips such as Wilderness Trails or Learning Journeys.

In case the actual support provided differs more than 15% (less or more), the quarterly fees can be adjusted. This will be initiated by the team beforehand to avoid unexpected surprises.

You can find our contractual Terms & Conditions that will govern our engagement for you at the end of this document in appendix D.

* * *

We thank you for the trust you put in Aberkyn. We are convinced that this journey will significantly contribute to the team effectiveness, provide systemic unlocks and embed new practices to sustain new ways of working to help the organization to achieve its ambitions and hence contribute to the purposefull aspiration to accelerate the energy transition. We look forward to working together.

Best regards,

TenneT TSO B.V.

Otto Jager

(Date and signature)

May 27, 2021

Aberkyn Nederland BV

Erik Mandersloot

22 May, 2021



APPENDIX A – OVERVIEW OF MODULES AND PRACTICES

This is a non comprehensive overview of possible modules and practices that can be used if and when applicable and adding value to the journey.

Team

Adaptive leadership
 Advocacy vs Inquiry
 Body language
 Check-in & Check-out
 Debono six hats
 Dealing with dilemmas
 Decision making traps
 Dialogue
 Iceberg model
 Feedback
 Kantor four player model
 Lencioni 5 dysfunctions
 Levels of interdependence
 Patterns of interaction
 Performance dialogue
 Power dynamics
 Psychological safety
 Requests and commitments
 Root Cause Problem Solving
 Sociogramming
 Team Charter
 Trust & trust maps
 Work only we can do

Individual Leadership

Adaptive leadership
 Adult development theory
 Courageous conversations
 Empathy & compassion
 Executive presence
 Growth vs fixed mindset
 Leadership styles
 Motivational theory
 Pursonal purpose and meaning
 Silent practices
 Story telling
 Transformational coaching
 Unconscious biases

Systems/culture

Adaptive leadership
 Appreciative Inquiry
 Design thinking
 Force fields analysis
 Inclusiveness, Equity & Diversity
 Spiral Dynamics
 Systems, constellations & patterns
 Theory U



APPENDIX B – PRELIMINARY DESIGN OF OFFSITE 1 - 4 & 17/18 JUNE

Offsite – Cycle 1	
Dates & Times	4 June: 09.00 to 21.00 17 June 10.00 to 18 June 17.00
Venue	4 June: TBD (Eastern part of The Netherlands) 17/18 June: TBD (Northern Germany or brewery/monestary Maarten)
Objectives	<i>Content:</i> Break through conversations on ‘Hot Potatoes’: how aligned are we? How do we lead on these topics? <i>Team:</i> Experiment with creative conflict: move through the discomfort <i>Team:</i> Quality of Execution: How will we lead? <i>Team:</i> get to know each other better and have fun together <i>Personal:</i> Start shaping personal & professional development plan
Pre work	Collect and reflect on the insights you gained from personal development tools /exercises you have done so far in your career Impact Essentials Assessment Survey Prepare 1 or 2 ‘hot potatoes’ to work on during the sessions
Preliminary program	<u>4th of June</u> Check-in (45) Dialogue on overview Hot Potatoes: How are they related? Is there a root cause? What is hindering us from moving through? (30) Personal reflection: What am I learning? What is holding me back? (30) Deep dive on first Hot Potato plus reflection on having the real conversations/creative conflict: where do we stand and how do we lead? (90) Lunch (45) Fun activity (180) Check-out (30)



17/18 June (program to be refined after 4 June)

Day 1

Check-in (30)

Personal: How do I lead? What have been my learnings around myself as a leader and what is my view on how we lead TenneT? (90)

Team/system/transformation: Value Systems in an organization (Spiral Dynamics) (60)

Lunch (45)

Activity (45)

Hot Potato(es) conversation + reflection (120)

Drinks (60)

Dinner: How do we lead? Creation of team vision on leadership, including exploration of personal implications (120)

Day 2

Activity (60)

Breakfast (60)

Guest plus reflection (75)

Hot Potato(es) conversation + reflection (120)

Lunch (60)

How do we lead? Action setting (60)

Feedback and personal and professional development plans (60)

Check-out (30)



APPENDIX C – OVERVIEW OF THE EXECUTIVE BOARD JOURNEY

		Offsites	PD & Coaching + 'in the moment'	360 feedback	Reflection in Action	
2021	June	Cycle 1	Session 1	Gathering input Personal debrief Team debrief	2-4 moments	
	July		Session 2			
	August	Cycle 2	Session 3		2-4 moments	
	September					
	October	Cycle 3	Session 4		2-4 moments	
	November					
2022	December	Cycle 4 (WT / LJ)	Session 5		2-4 moments	
	January		Session 6			
	February		Session 7			2-4 moments
	March					
	April	Session 8	2-4 moments			
	May					
	June	Cycle 5 (WT / LJ)	Session 9	Gathering input Personal debrief Team debrief	2-4 moments	
	July					
	August	Cycle 6	Session 10		2-4 moments	
	September					
	October	Cycle 7	Session 12			
	November					
	December					

WT / LJ – The Wilderness Trail or Learning Journey can be scheduled in March or June



APPENDIX D - STANDARD ABERKYN TERMS AND CONDITIONS

Aberkyn has provided you (the "Client") with a proposal describing the work that we have agreed to carry out for you ("the Services") in the form of a Letter of Engagement ("LoE"). Upon confirmation of this LoE by your signature or by a purchase order from your company, we will undertake the agreed upon work as described in the LoE.

1. FINANCE

Fees are communicated in the LoE and are agreed upon by confirmation of the LoE by the Client. All our charges are calculated on a fixed fee basis; they are inclusive of all expenses and exclusive of any Value Added Tax (VAT) or other taxes (e.g., cross border taxes) chargeable, which shall be paid at the same time as payment of our fees are made.

2. INVOICING AND PAYMENT

Invoices are usually submitted on an interim basis, unless otherwise agreed. The timing of invoicing is included in the LoE. Payment of invoices is expected within thirty days of the invoice date. Aberkyn has the right to charge an interest of 1% per month on account balances exceeding our terms.

Beyond the conditions set forth in the LoE, the Client may at any time and in its sole discretion terminate any Purchase Order in whole or in part. Upon receipt of such notice, we shall take immediate steps to bring the pertaining LoE to an end and shall use best efforts to limit expenditures under such Purchase Order to a minimum.

In the event a Purchase Order is terminated in accordance with and subject to the conditions contained in this paragraph, Aberkyn shall be entitled to receive a remuneration related to the project based on actual fees due up to the date of receipt of our termination notice.

3. CANCELLATION

In case of cancellation of the confirmed Services/ dates by the Client, the following cancellation rates apply:

Activity	% of fees	Term before start date
Two or more day leadership programs	100%	One week
	75%	Two weeks
	50%	One month
One day leadership programs/team facilitation	100%	One week
	50%	Two weeks
	25%	One month
Half day facilitation	100%	One week
	50%	Two weeks
Coaching	100%	48 hours
	50%	One week



4. CHANGE OF CONFIRMED DATES

In case of a change of confirmed dates on request of the Client this will be accepted without charge on the following conditions: new dates and appropriate staffing are agreed within six months of the original starting date and notification of change of date is given more than one month before the start date. When notification is given less than 1 month before the start date and rescheduling is not possible within six months, below shifting date rates apply.

When notification is given less than one month before the start date and it is not possible to find alternative staffing for the facilitator on the reserved dates in question, above cancellation rates apply.

Activity	% of facilitation rate	Term before start date
Two or more day leadership programs	100%	One week
	50%	Two weeks
	25%	One month
One day leadership programs/team facilitation	100%	One week
	50%	Two weeks
Half day facilitation	100%	One week
Coaching	100%	48 hours

5. STAFFING / RESOURCE ALLOCATION

Whenever possible, we will endeavour to provide you with the facilitators that you have requested but there may be occasions when it is necessary to substitute our facilitators with others.

In planning program dates, specified facilitators will be reserved for two weeks by Aberkyn staffing; if we don't receive firm confirmation of the proposed date within this timeframe, the facilitators will become available for other staffing opportunities. Aberkyn staffing will look whether other facilitators can be made available for the requested date (two weeks staffing reservation again) before confirming the program dates.

If confirmed dates are changed on request of the client after the confirmation of specified facilitators, there will be no guarantee that the same facilitator can do the work; Aberkyn staffing will actively look for alternatives but cannot give any guarantees that new date can be committed to (see also 4. Change of confirmed dates).

The Aberkyn staffing team will dedicate specific time once a week for every program and will connect with the client planner on those days to go through the schedule. Any interim changes that can wait for a week will be dealt with during the next planning session.



6. CONFIDENTIALITY

Effective support in your leadership journey requires our access to confidential information. We recognize that you will entrust such information to us with the expectation that we handle it carefully and professionally. We are committed to meeting the highest professional standards.

We will never disclose your confidential information, materials that we develop for you from your confidential sources, or information that we believe conveys significant competitive advantage, to anyone without your prior consent, except in the unusual circumstance when we are legally compelled to do so. We will only use such information in connection with our services for you and in no other way.

We aspire to a relationship based on trust and confidence, and we welcome the opportunity to discuss any areas of particular sensitivity you may have regarding the handling of confidential information. Where appropriate, we will enter into explicit confidentiality agreements.

All our facilitators have signed a confidentiality agreement, agreeing to our confidentiality policy, as part of their contract with Aberkyn.

7. DISCLOSURE OF ABERKYN MATERIALS; PUBLICITY

Aberkyn's work for the Client is confidential and for the Client's internal use only. Aberkyn will not disclose the reports and other deliverables prepared for and furnished to the Client by Aberkyn in connection with the Services (the "Deliverables") to any third parties without the Client's prior written permission. Similarly, the Client agrees that it will not disclose any materials or information that Aberkyn furnishes to the Client, including the Deliverables, to any third parties without Aberkyn's prior written permission unless it has a legal obligation to do so. Each party further agrees not to use the other party's name or trademarks in any communication with any third party without the other party's prior written permission unless it has a legal obligation to do so.

8. INTELLECTUAL PROPERTY

Unless otherwise agreed in writing or provided for in this contract, all intellectual property rights in the Deliverables, including in the intervention and facilitation services or any materials provided by us under these T&Cs remain our property.

9. FORCE MAJEURE

We shall not be in breach of this contract if there should be any total or partial failure of our performance of the T&Cs occasioned by any reason beyond our control.



10. LIMITATION OF RISK

The Services shall not be deemed investment, legal, tax, accounting or other regulated advice, and Aberkyn does not supplant the Client's management or other decision-making bodies and does not guarantee results. The Client remains solely responsible for its decisions, actions, use of the Deliverables and compliance with applicable laws, rules and regulations. The Client agrees to pay for any costs, including attorney fees, Aberkyn incurs as a result of its participation as a non-party in any legal, regulatory, administrative or other proceeding relating to the Services. In no event shall Aberkyn's liability to the Client in connection with the Services relating to these T&Cs/LoE exceed the fees received by Aberkyn from the Client in connection with these T&Cs/LoE. Neither party will be liable for any lost profits or other indirect, consequential, incidental, punitive or special damages.

11. CLIENT WARRANTY

The Client warrants that it has obtained or complied with all relevant statutory and any other applicable approvals, provisions and requirements surrounding the authorisation, negotiation, award, signature and any other applicable aspect of these T&Cs/LoE including but not limited to the Latvian Law on Public Procurement, in particular, as to the lawfulness of awarding this work to Aberkyn. The Client indemnifies Aberkyn and its affiliates for any and all damages suffered whatsoever in the event that this warranty be breached.

12. FREEDOM OF INFORMATION ACT

Aberkyn recognises that the Client might be subject to obligations under the Latvian Access to Information and Data Protection Law and wishes to co-operate with the Client in its discharging of those obligations. The Client shall notify and consult with Aberkyn prior to disclosing any proprietary materials or information provided by Aberkyn for discussing, performing under or otherwise in connection with these T&Cs/LoE. The Client acknowledges that such materials or information may be covered by exemptions from disclosure, including without limitation the exemptions for information provided in confidence, trade secrets, commercially sensitive information and personal data and acknowledges that disclosure of such materials or information may result in irreparable, unquantifiable and continuing damage to Aberkyn.



13. DATA SECURITY

Without limiting the foregoing, if Consultant processes data as part of the Services and on behalf of the Client which relates to an identified or identifiable person ("personal data"), Consultant shall (i) only process such personal data, including with respect to Consultant's use of subcontractors or sub-processors, as set forth in this agreement and the McKinsey Data Protection Protocols <https://solutions.mckinsey.com/msd/data-protocols.pdf> (the "Protocols"), as otherwise authorized in writing by the Client, or as required by applicable law, (ii) implement appropriate technical and organizational measures to protect such personal data as set forth in the Protocols, (iii) promptly notify the Client of any incident in which the confidentiality, integrity or security of the personal data has been compromised, and (iv) collaborate with the Client as required by applicable law or the Client's request to document the personal data, data subjects and processing activities related to the Services, including as part of an applicable Work Order. In the event that the Client transfers personal data that is subject to the General Data Protection Regulation (2016/679) to Consultant outside of the European Economic Area, or where otherwise agreed by the parties or required by applicable law, the parties agree that the standard contractual clauses for the transfer of personal data to processors established in third countries under Directive 95/46/EC of the European Parliament and of the Council (or any successor thereto), shall be deemed automatically incorporated into this agreement and binding upon the parties hereto, including their affiliates, unless an alternate data transfer arrangement authorized by applicable law is agreed by the parties.

14. MISCELLANEOUS

The agreement is constructed in accordance with and shall be governed by the law of The Netherlands. All disputes that may arise from this cooperation agreement shall be subject to the exclusive jurisdiction of a competent court in The Netherlands. If any provision of this agreement is declared or determined to be illegal or invalid by final determination of any court of competent jurisdiction, the validity of the remaining parts, terms or provisions of this agreement will be interpreted to affect the original intent of the parties as closely as possible.